



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Jeanie Vetter, PLA, Parks and Greenway Planner
Subject: MEMORANDUM OF UNDERSTANDING BETWEEN THE CITY OF CHEYENNE AND SUN VALLEY ESTATES LLC OUTLINING RESPONSIBILITIES IN PURSUIT OF A LAND EXCHANGE OF APPROXIMATELY 15,375 SQUARE FEET TO FACILITATE BETTER ALIGNMENT OF THE PUBLIC GREENWAY SYSTEM AND BETTER SITE LAYOUT FOR PRIVATE MULTI-FAMILY DEVELOPMENT

Date: November 7, 2022

Background:

The purpose of this MOU is to outline responsibilities of both the City and the Developer to pursue a land exchange to facilitate a better alignment of the future Sun Valley Greenway Connector and better site layout for the Developer of future multi-family apartments. Once the MOU is approved by Council and responsibilities of the MOU are met by both parties, the parties will enter into a Purchase, Sale and Exchange Agreement for exchange of lands. No money will be exchanged. The City has begun the processes of annexation and zoning for the City owned parcel as described in the MOU and the items will go in front of Planning Commission on December 5th and will be at City Council for 1st reading on December 12th.

Enclosures:

MOU

Exhibit A Land Exchange Exhibit

Sun Valley to East (Kiwanis) Park Corridor Exhibit

MEMORANDUM OF UNDERSTANDING

This Memorandum of Understanding (MOU) is by and between the City of Cheyenne, a municipal corporation existing under the laws of the State of Wyoming (City), located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, and Sun Valley Estates, LLC (Developer), located at 2116 Pioneer Ave, Cheyenne WY 82001. The City and Developer are collectively referred to as "Party" or "Parties." This MOU shall become effective upon the date of the last signature affixed hereto.

WHEREAS, the Developer is developing a multi-family residential subdivision to be known as Centennial Heritage, 2nd Filing, situated in the City of Cheyenne, County of Laramie, State of Wyoming, (herein referred to as "Development") legally described as follows;

Lots 8 thru 12, Block 2, Centennial Heritage and

WHEREAS, the City owns developable adjacent property, situated in the County of Laramie, State of Wyoming, legally described in Affidavit Recorded at Book 2763, Page 1714 (correction to Warranty Deed recorded October 27, 2021, in Book 2760, Page 732) as follows:

A tract of Land situated in the NW 1/₄ of Section 2, Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, more particularly described as follows:

Commencing at the northwest corner of said Section 2; thence 90°12'46", a distance of 1602.32 feet to the point of beginning, said point also being the southwest corner of Sun Valley Addition Twelfth Filing and the southeasterly corner of Sun Valley Thirteenth Filing; thence 235°40'06", along the south line of said Thirteenth Filing, a distance of 700.00 feet; thence 239°39'08", a distance of 216.00 feet; thence 251°35'28", a distance of 216.00 feet; thence 263°44'44", a distance of 216.00 feet; thence 270°13'05", a distance of 170.06 feet to the east line of Centennial Heritage; thence 180°13'06", along said east line, a distance of 221.65 feet to the northerly right-of-way line of the original main line of the Union Pacific Railroad; thence northeasterly along said right-of-way line being a curve concave to the northwest having a radius of 1709.85 feet, central angle of 42°07'27" (chord azimuth of 61°03'41"), a distance of 1257.09 feet to the east line of the NW1/4NW1/4 of said

Section 2; thence 179°24'36", along said east line, a distance of 252.66 feet to the northerly right-of-way line of the present Union Pacific Railroad; thence northeasterly along said right-of-way line being a curve concave to the northwest, having a radius of 3719.69 feet; a central angle of 6°15'44", (chord azimuth of 58°50'18"), a distance of 406.54 feet; thence 55°42'26", a distance of 90.46 feet; thence 325°42'26", a distance of 258.33 feet to the point of beginning., and

WHEREAS, the City Board of Adjustment approved a conditional use regarding construction of a multifamily complex on October 21, 2021; and

WHEREAS, the City and the Developer have both identified positive benefits to both parties regarding a potential land change which is generally shown in Exhibit A, which is attached hereto and incorporated herein; and

WHEREAS, the City and Developer believe a land exchange will facilitate better alignment of the greenway system and result in better site layout for multifamily development; and

WHEREAS, the City and Developer shall work together to exchange approximately 15,375 square feet of land; and

WHEREAS, to facilitate the exchange, various development-related applications are required, including but not limited to annexation, rezoning, conditional use, and site plan for involved properties; and

WHEREAS, pursuit of this land exchange demonstrates a substantial investment in establishing the approved conditional use pursuant to section 2.2.1.c.4 of the Unified Development Code of the City of Cheyenne; and

WHEREAS, the City and Developer, once responsibilities of this MOU are met, will ultimately enter into a Purchase, Sale and Exchange Agreement for exchange of lands; and,

WHEREAS, the purpose of this agreement is to outline responsibilities of the City and the Developer;

NOW, THEREFORE, the Parties agree as follows:

1. Purpose. The purpose of this MOU is to exchange land that would benefit both parties. No money will change hands.

2. Term. This MOU shall commence on the last date executed by the duly authorized representatives of the Parties to this MOU and shall remain in full force and effect for one calendar year from the date this document is executed by both Parties unless modified or renewed in writing and signed by both Parties.

3. Payments. Neither Party shall have any obligation to make any payment of any kind to the other Party under this MOU.

4. Responsibilities of the Developer. The Developer shall:

- a. Seek approval of all necessary applications to divide the subject lands to facilitate their Development and the conveyance of land.
- b. Seek approval of a conditional use permit application based on the revised project layout and land areas; along with any and all required development entitlements; including but not limited to Site and Landscape Plan(s), Engineering Plan Review(s), Subdivision Plat(s) or Replat(s), and Permits or Licenses.
- c. Bear all cost associated with the above-mentioned applications.

5. Responsibilities of the City. The City shall:

- a. Initiate annexation and zoning of the current City owned property to Medium-density Residential (MR) zoning district and shall bear all costs associated with these processes.
- b. Design and construct all Greenway elements within the future City owned property.
- c. Upon completion of both City and Developer responsibilities noted herein, initiate an Agreement for the Purchase, Sale and Exchange of Lands and bear all costs

associated with this process.

7. General Provisions.

a. Amendments. Any changes, modifications, revisions, or amendments to this MOU which are mutually agreed upon by the Parties to this MOU shall be incorporated by written instrument, executed and signed by all Parties to this MOU.

b. Assignment. No Party may assign or transfer the responsibilities or agreements made herein without the prior written consent of the non-assigning Party, which approval shall not be unreasonably withheld.

c. Applicable Law. The construction, interpretation, and enforcement of this MOU shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over this MOU and the Parties, and the venue shall be in the First Judicial District, Laramie County, Wyoming.

d. Compliance with Laws. The Parties shall keep informed of and comply with all applicable federal, state, and local laws and regulations in the performance of this MOU.

e. Indemnification. Developer agrees to indemnify, hold harmless, and defend the City from and against any and all liabilities, claims, penalties, forfeitures, and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result the performance of the Developer's duties or responsibilities contained herein, including death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations, or orders to the extent caused by (1) Developer's breach of any term or provision of this Agreement; or (2) any

negligent or wrongful act, error, or omission by Developer, or its employees, in the performance of this Agreement. Developer acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

f. Nondiscrimination. The Parties shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act, Wyo. Stat. § 27-9-105, *et seq.*, the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy, or qualifying disability in connection with the performance under this MOU.

g. Governmental Immunity. The City does not waive governmental immunity by entering into this MOU and specifically retains all immunities and defenses available to it as a governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable laws. Designation of venue, choice of law, enforcement actions, and similar provisions should not be construed as a waiver of governmental immunity.

h. Third-Party Beneficiary Rights. The Parties do not intend to create in any other individual or entity, the status of third-party beneficiary and this MOU shall not be construed so as to create such status. The rights, duties, and obligations contained in this MOU shall operate only between the Parties to this MOU and shall inure solely to the benefit of the Parties to this MOU. The provisions of this MOU are intended only to assist the Parties in determining and performing their obligations under this MOU. The Parties to this MOU intend and expressly agree that only parties signatory to this MOU shall have any legal or equitable right to seek to enforce this MOU, to seek any remedy

arising out of a Party's performance or failure to perform any term or condition of this MOU, or to bring an action for the breach of this MOU.

i. Force Majeure. The performance of this MOU by the Parties shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the Parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this MOU. This MOU may be cancelled by any Party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other Party.

j. Severability. If any provision of this MOU is found to be invalid or unenforceable for any reason, the remaining provisions will continue to be valid and enforceable. If a court finds that any provision of this MOU is invalid or unenforceable, but that by limiting such provision it would become valid and enforceable, then such provision will be deemed to be written, construed, and enforced as so limited.

k. Notice. All notices arising out of or from the provisions of this MOU shall be in writing and given to the Party either by regular mail or delivery in person.

l. Termination. Any Party may terminate its participation in this MOU, with

or without cause, by providing thirty (30) days written notice to the other Party.

m. Prior Approval. This MOU shall not be binding upon the Parties, no services shall be performed under the terms of this MOU, and no payments shall be made until this MOU has been reduced to writing and approved by all necessary authorities.

n. Entirety of Contract. This MOU represents the entire and integrated agreement between the Parties and supersedes all prior negotiations, representations, and agreements, whether written or oral.

8. Signatures. In witness whereof, the Parties to this MOU, through their duly authorized representatives, have executed this MOU on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this MOU.

City of Cheyenne

Date
(SEAL)
Attest:

By:

Patrick Collins, Mayor

Kristina F. Jones, City Clerk

Sun Valley Estates, LLC

Date

By:

Robert Chamberlin

Title: as Owner for Sun Valley Estates, LLC

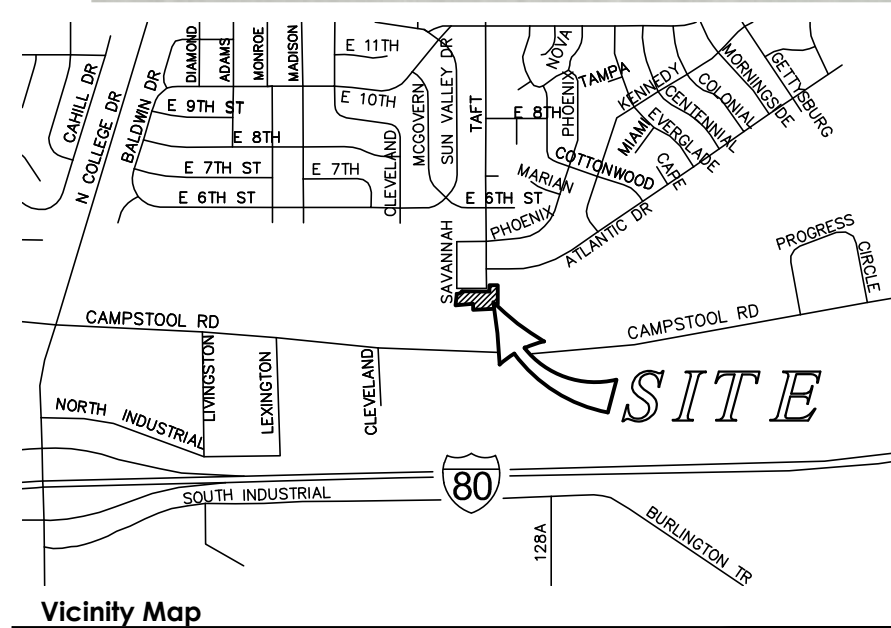
Situate in the NW1/4 Section 2, Township 13 North, Range 66 West of the 6th P.M., Laramie County, WY | Adjacent to and including Portions of Lots 8 - 12, Block 2, Centennial Heritage Subdivision, Cheyenne, Wyoming TBKA Centennial Heritage, 2nd Filing

CURVE TABLE

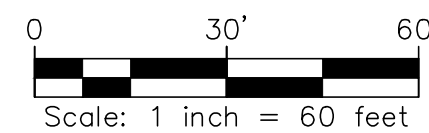
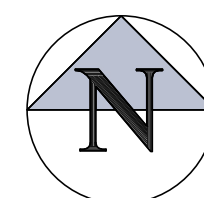
CURVE #	DELTA	RADIUS	CHORD AZIMUTH	CHORD LENGTH	ARC LENGTH
C3	8° 00' 30"	1709.86'	266° 21' 39"	238.80'	238.99'
C4	2° 40' 43"	3652.04'	264° 39' 22"	170.73'	170.74'
C5	62° 58' 33"	55.00'	64° 50' 08"	57.46'	60.45'
C6	1° 24' 47"	3652.03'	85° 17' 20"	90.06'	90.06'
C7	1° 15' 57"	3652.04'	83° 56' 59"	80.68'	80.68'
C8	2° 37' 17"	1709.86'	269° 03' 16"	78.22'	78.23'
C9	2° 41' 16"	1709.86'	266° 23' 59"	80.20'	80.21'
C10	2° 41' 57"	1709.86'	263° 42' 23"	80.54'	80.55'

Site Plan Details:

- RALEIGH DRIVE (80' R/W)**
- PUBLIC R/W (at replat)**: ±2,517 SqFt | ±0.06 Acres
- Greenway Corridor | (to City)**: ±15,375 SqFt | ±0.35 Acres
- Unplatted City Land (to Developer)**: ±15,375 SqFt | ±0.35 Acres
- Regional Detention/ Open Space**: (±8,000 SqFt Surface Area)
- LOT 10**: 2-Story 4-Plex MF Building (±1,976 SF Footprint)
- LOT 11**: 2-Story 4-Plex MF Building (±1,976 SF Footprint)
- LOT 12**: 2-Story 4-Plex MF Building (±1,976 SF Footprint)
- UNION PACIFIC RAILROAD R/W**
- CITY OF CHEYENNE**
- ORNELAZ B1286, P1627**
- B2763, P1627**
- SUN VALLEY ADDITION**
- LOT 2**
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STEEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
 1102 WEST 19th ST. CHEYENNE, WY. 82001 • (307) 634-7273
 756 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 522-9789
www.SteelSurvey.com • Info@SteelSurvey.com

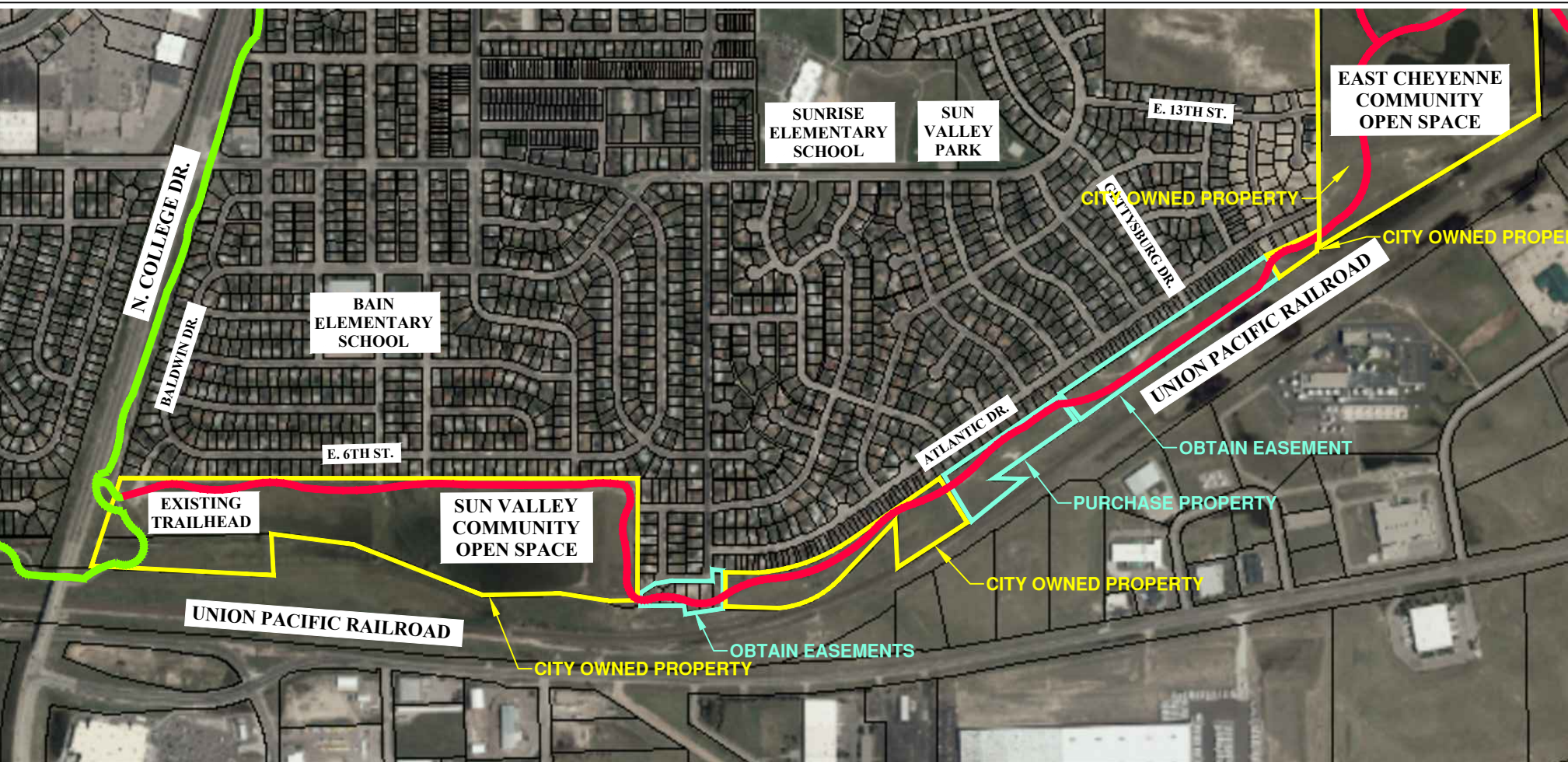


PALMA
Land Planning

SITE & SUBDIVISION DESIGN
ZONING | LANDSCAPE ARCHITECTURE

1300 E. Murray Rd., Bldg. One, Suite A | Cheyenne, WY 82007
www.PlanDesignWY.com

Dated: November 4, 2022



PROPOSED SUN VALLEY TO EAST PARK CONNECTOR



- EXISTING GREENWAY (MULTI-USE PATH) 
- PROPOSED GREENWAY (MULTI-USE PATH) 
- CITY OWNED PROPERTY 
- PRIVATE PROPERTY (OBTAIN EASEMENT OR PURCHASE) 